



CHAPTER 21.

An Act to provide for the increase of certain pensions payable in respect of public service. [24th May 1944.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Subject to the provisions of this section, a pension specified in the First Schedule to this Act may, in respect of any period after the thirty-first day of December, nineteen hundred and forty-three, be increased by the pension authority by an amount calculated in accordance with the provisions of the Second Schedule to this Act : Increase of certain pensions payable in respect of public service.

Provided that a pension shall not be increased under the provisions of this section unless the pension authority are satisfied that the income of the pensioner does not exceed, in the case of a pensioner who is married or has at least one dependant, three hundred pounds a year, and, in the case of any other pensioner, two hundred and twenty-five pounds a year.

(2) Where a pension is payable in respect of the pensioner's own services, the pension shall not be increased under the provisions of this section unless :—

- (a) the pensioner has attained the age of sixty years : or
- (b) the pensioner has retired on account of physical or mental infirmity from the office or employment in respect of which, or on retirement from which, the pension is payable : or
- (c) the pension authority are satisfied that the pensioner is disabled by physical or mental infirmity : or
- (d) the pensioner is a woman who has at least one dependant.

(3) Where a pension is payable in respect of the services of any person other than the pensioner, not being the deceased husband of the pensioner, the pension shall not be increased under the provisions of this section unless :—

- (a) the pensioner has attained the age of sixty years : or
- (b) the pensioner has not attained the age of sixteen years : or
- (c) the pensioner is a woman who has at least one dependant :
or
- (d) the pension authority are satisfied that the pensioner is disabled by physical or mental infirmity.

(4) Where a pension is payable in respect of the services of the deceased husband of the pensioner, the pension shall not be increased under the provisions of this section unless :—

- (a) the pensioner has attained the age of forty years : or
- (b) she has at least one dependant : or
- (c) the pension authority are satisfied that she is disabled by physical or mental infirmity.

(5) For the purposes of this section and of the Second Schedule to this Act, the expression "dependant" means, in relation to any pensioner, any person other than the pensioner with respect to whom the pension authority are satisfied that he is wholly or mainly supported by the pensioner and that his total income from any other source does not exceed fifty-two pounds a year, being either—

- (a) a person who has not attained the age of sixteen years, or who, if he has attained that age, is receiving full-time instruction at any educational establishment or is undergoing training for any trade, profession, or vocation : or
- (b) the father, mother, brother, sister, child, uncle or aunt of the pensioner, or of the husband or wife of the pensioner, or of the deceased husband or wife of the pensioner : or
- (c) the child of any such person as is mentioned in the last foregoing paragraph : or
- (d) the stepfather or stepmother of the pensioner :

and in this subsection the expression "child" includes, in relation to any person, a step-child, an illegitimate child and a child adopted by him in pursuance of an adoption order made under the

16 & 17 Geo. 5. Adoption of Children Act, 1926, the Adoption of Children
c. 29. (Scotland) Act, 1930, or any corresponding enactment of the
20 & 21 Geo. 5. Parliament of Northern Ireland, or adopted by him in accordance
c. 37. with the law of the place where he was domiciled at the time of
the adoption.

In calculating, for the purposes of this subsection, the income of any such person as is mentioned in paragraph (a) thereof, no account shall be taken of any income accruing to that person as the holder of a scholarship or other educational endowment.

(6) For the purposes of this section, a pensioner shall be deemed to be disabled by physical or mental infirmity if he is permanently incapacitated by such infirmity from engaging in any regular full-time employment.

(7) Where any such pension as is specified in Part II of the First Schedule to this Act may be increased under the provisions of this section, it shall be the duty of the pension authority to increase the pension in accordance with those provisions.

2.—(1) A pension payable under the Superannuation Acts, 1834 to 1943, may, in respect of any period after the thirty-first day of December, nineteen hundred and forty-three, be increased by the pension authority in accordance with the following scale, that is to say:—

Special provisions as to increase of pensions payable under the Superannuation Acts.

- (a) where the pension does not exceed four hundred pounds a year, by ten per cent. :
- (b) where the pension exceeds four hundred pounds a year but does not exceed six hundred pounds a year, by seven and one half per cent. : and
- (c) where the pension exceeds six hundred pounds a year but is less than six hundred and forty-five pounds a year, to six hundred and forty-five pounds a year :

Provided that a pension shall not be increased under the provisions of this subsection if it is payable by reason of the death or retirement of any person before the twenty-first day of February, nineteen hundred and twenty-two.

(2) Where the increase of any pension is authorised by the provisions of the last foregoing subsection, then :—

- (a) if the amount of the increase so authorised equals or exceeds the amount by which the pension might have been increased under the provisions of section one of this Act, the pension shall not be increased under the provisions of the said section one : and
- (b) in any other case, the amount by which the pension may be increased under the provisions of the said section one shall be reduced by the amount of the increase authorised by the provisions of the last foregoing subsection.

3.—(1) The income of a pensioner shall be calculated for the purposes of section one of this Act and the Second Schedule thereto in accordance with the regulations made by the Treasury, and such regulations shall in particular provide :—

Supplementary and administrative provisions.

- (a) that the first fifty-two pounds a year of any income accruing to the pensioner otherwise than in respect of a

pension specified in the First Schedule to this Act shall be disregarded : and

- (b) that the income of a married pensioner shall be deemed to include the income of the husband or wife of the pensioner, but that, save as aforesaid, the income of a pensioner shall not be deemed to include the income of any other person.

(2) Where a pension specified in the First Schedule to this Act has been increased by reason of any addition, since the third day of September, nineteen hundred and thirty-nine, to the emoluments of any office or employment in respect of which, or on retirement from which, the pension is payable, and the pension authority are satisfied that the said addition was an addition by way of war bonus or other similar allowance, the increase authorised by the foregoing provisions of this Act shall be calculated as if the pension had not been increased by reason of the said addition, and :—

- (a) if the amount of the increase authorised by those provisions, when so calculated as aforesaid, is equal to or less than the amount by which the pension has been increased by reason of the said addition, the pension shall not be increased under those provisions : and
- (b) in any other case, the amount of the increase authorised by those provisions, after being so calculated as aforesaid, shall be reduced by the amount by which the pension has been increased by reason of the said addition.

(3) Where the amount to which a pension may be increased under the foregoing provisions of this Act is less than the amount to which that pension might have been increased if it had been smaller, the pension may be increased to the last mentioned amount.

(4) In calculating, for the purposes of the Pensions (Increase) Acts, 1920 and 1924, the means of any pensioner or the amount of any pension, any increase for which provision is made by this Act shall be disregarded ; and where the amount of any pension has been increased under the Pensions (Increase) Acts, 1920 and 1924, or by or under any other enactment, the increase for which provision is made by this Act shall, subject to the provisions of subsection (2) of this section, be calculated upon the amount of the pension as so increased.

(5) The Treasury may by regulations :—

- (a) prescribe the manner in which claims for an increase of a pension under the provisions of section one of this Act are to be made, and the procedure to be followed in considering and determining any such claim :

- (b) prescribe the evidence required for the purpose of determining whether a pension may be increased in accordance with the provisions of the said section :
- (c) prescribe the manner in which the amount of any pension is to be calculated for any of the purposes of this Act in cases where any part thereof has been surrendered for the purpose of enabling the pension authority to grant a pension to the husband or wife of the pensioner and the manner in which, in any such case, the pension granted to the husband or wife of the pensioner is to be calculated for any such purpose as aforesaid :
- (d) provide that where a husband and wife are living apart, they shall, in such circumstances as may be prescribed by the regulations, be treated as unmarried persons for the purposes of this Act :
- (e) provide that, in relation to any class of pensions specified in the regulations, all or any of the functions of the pension authority under this Act shall be performed on behalf of the pension authority by such other authority as may be so specified.

(6) All regulations made by the Treasury under subsections (1) and (5) of this section shall be laid before Parliament as soon as may be after they are made, and if either House of Parliament, within the period of forty days beginning with the date on which any such regulations are laid before it, resolves that the regulations be annulled, the regulations shall thereupon become void, without prejudice, however, to the validity of anything previously done thereunder or to the making of new regulations.

In reckoning any such period of forty days as aforesaid no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

(7) Notwithstanding anything in subsection (4) of section one 56 & 57 Vict. of the Rules Publication Act, 1893, regulations made under c. 66. subsections (1) and (5) of this section shall not be deemed to be statutory rules to which that section applies.

(8) Subject to the provisions of this Act and of any Order in Council made thereunder, any provision made by or under any enactment shall, in so far as it relates to the apportionment of the cost of a pension between two or more authorities, or to the manner in which a pension is to be paid, or to the proof of title to sums payable on account of a pension, or in so far as it prohibits or restricts the assignment or charging of a pension or its application towards the payment of debts, have effect in relation to any increase payable under this Act as it has effect in relation to the pension in respect of which the increase is payable ; but save as

aforesaid any such increase shall not be treated as part of the pension for the purposes of any such provision as aforesaid.

Extension of
provisions of
section one.

4.—(1) His Majesty may by Order in Council direct that this Act shall have effect in relation to any such pensions as are hereinafter mentioned, that is to say :—

(a) pensions (not being pensions specified in Part II of the First Schedule to this Act) which are payable under any enactment by local authorities, whether out of super-annuation funds or otherwise :

(b) pensions payable in respect of service as a probation officer or in respect of service under any insurance committee appointed under the National Health Insurance Act, 1936 (including a committee formed by a combination of insurance committees under section ninety-four of that Act) :

26 Geo. 5. &
1 Edw. 8. c. 32.

as if those pensions were specified in Part II of the said First Schedule.

(2) Any Order in Council made under this section may include such incidental, consequential and supplemental provisions as appear to His Majesty to be expedient, and may in particular make provision for securing that the cost of increasing the pensions to which the Order in Council relates shall be borne by the appropriate authority.

(3) Any such Order in Council may be varied or revoked by a further Order in Council made by His Majesty.

(4) Before any Order proposed to be made under this section is submitted to His Majesty in Council a draft thereof shall be laid before Parliament, and the Order shall not be so submitted unless an Address is presented to His Majesty by each House of Parliament praying that the Order be made.

Financial
provisions.

5.—(1) Any additional expenditure incurred by reason of the provisions of this Act in respect of the pensions specified in Part I of the First Schedule to this Act shall be defrayed out of moneys provided by Parliament.

(2) Where any such pension as is specified in paragraph 1 of Part II of the First Schedule to this Act is increased under the provisions of this Act, the cost of the increase shall be defrayed by the pension authority :

Provided that where the pension authority are not the last employing authority, the last employing authority shall reimburse the cost of the increase to the pension authority.

(3) For the purposes of the last foregoing subsection, the expression "the last employing authority" means, in relation to any pension, the local authority to whom the services in respect of which the pension is payable were last rendered ;

Provided that where the functions in connection with which those services were last rendered have been transferred to any other local authority, the said expression shall mean the local authority by whom those functions are for the time being exercisable.

(4) Any question as to who are the last employing authority for the purposes of subsection (2) of this section shall, in default of agreement, be determined by the Minister of Health.

6. Any person who, for the purpose of obtaining, either for himself or any other person, any sum payable by virtue of this Act, knowingly makes any false statement or false representation, shall be liable on summary conviction to imprisonment for a term not exceeding three months or to a fine not exceeding fifty pounds, or to both such imprisonment and such fine. Penalty for false statements, &c.

7.—(1) If provision is made by an appropriate instrument for the payment of additional sums to persons to whom pensions have been granted in respect of service in His Majesty's naval military or air forces, and it is declared in that instrument that the benefits thereby conferred are intended to correspond, as nearly as may be, with the benefits for which provision is made by this Act, then :— Provisions as to increase of pensions of naval, military and air force pensioners.

(a) the provisions of the last foregoing section shall have effect in relation to any additional sum so payable as they have effect in relation to any sums payable by virtue of this Act : and

(b) in determining whether any person is eligible for a special Greenwich Hospital pension under section five of the Greenwich Hospital Act, 1869, and the amount of any such pension, any additional sum so payable shall be disregarded. 32 & 33 Vict. c. 44.

(2) In this section the expression "appropriate instrument" means any Order in Council, Royal Warrant, order of His Majesty, or regulations of the Air Council.

8.—(1) In this Act the expression "pension" means any pension payable by way of periodical payments, and includes :— Interpretation.

(a) any allowance or other benefit payable (either in respect of the services of the recipient or in respect of the services of any other person) by virtue of any superannuation scheme, whether contained in any enactment or otherwise, including any superannuation scheme providing benefits in the case of injury or death : and

(b) any compensation payable in respect of retirement from any office or employment in pursuance of the provisions of any enactment, any compensation payable in respect

of the loss abolition or relinquishment of any office or employment occasioned by any alteration in the organisation of any department or service, or by any transfer or other reorganisation of the functions of local authorities, and any compensation payable in respect of any diminution in the emoluments of any office or employment which has been so occasioned as aforesaid :

Provided that the said expression does not include any gratuity and does not include any sum payable otherwise than by way of periodical payments, and accordingly the provisions of this Act shall not have effect with respect to any pension which has been commuted, and, where a part of any pension has been commuted, those provisions shall not have effect with respect to that part thereof.

(2) For the purposes of this Act, a pensioner shall be treated as unmarried unless the husband or wife of the pensioner is alive.

(3) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say :—

“ Enactment ” includes any enactment in a local Act and any provisional order confirmed by Parliament :

“ Local authority ” has the meaning assigned to it by section forty of the Local Government Superannuation Act, 1937 :

“ Pension authority ” means, in relation to any pension, the authority by whom the pension is payable.

(4) References in this Act to any enactment shall be construed as references to that enactment as amended by or under any subsequent enactment, other than this Act.

(5) Nothing in this Act shall authorise the increase of any pension in respect of any period after the expiry of this Act.

Application to
Scotland.

9. This Act shall, in its application to Scotland, have effect subject to the following modifications :—

(a) for references to the Local Government Superannuation Act, 1937, and to section forty thereof, there shall be substituted respectively references to the Local Government Superannuation (Scotland) Act, 1937, and to section thirty-four thereof :

(b) for any reference to the Minister of Health there shall be substituted a reference to the Secretary of State :

(c) for any reference to the Teachers (Superannuation) Acts, 1918 to 1939, there shall be substituted a reference to the Education (Scotland) (Superannuation) Acts, 1919 to 1939 :

- (d) any additional expenditure incurred by reason of the provisions of this Act in respect of pensions payable under the Education (Scotland) (Superannuation) Acts, 1919 to 1939, shall be defrayed out of the Education (Scotland) Fund; and for the purpose of ascertaining the sum to be paid into that Fund under section six of the Education (Scotland) (Superannuation) Act, 1919, any additional expenditure incurred by reason of the provisions of this Act in respect of pensions payable under the Elementary School Teachers (Superannuation) Acts, 1898 to 1912 (so far as they relate to England and Wales), and the Teachers (Superannuation) Acts, 1918 to 1939, shall be treated as included in the sums estimated to be expended and the sums actually expended from the Vote for Education in England and Wales on the superannuation of teachers: 9 & 10 Geo. 5. c. 17.
- (e) for any reference to subsection (1) of section one of the Local Government Superannuation Act, 1939, there shall be substituted a reference to subsection (2) of that section: and 2 & 3 Geo. 6. c. 18.
- (f) any expenditure incurred by any local authority by reason of any increase under this Act in any pension payable in respect of the services of any person shall be defrayed out of the funds rates or revenues upon which the remuneration of that person was charged.

10.—(1) This Act may be cited as the Pensions (Increase) Act, 1944. Short title,
expiry and
extent.

(2) This Act shall continue in force for the period ending with the thirty-first day of December, nineteen hundred and forty-five, and shall then expire:

Provided that upon the expiry of this Act subsection (2) of section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals) shall have effect as if this Act had then been repealed. 52 & 53 Vict. c. 63.

(3) Except for the purpose of the increase of pensions payable under the Superannuation Acts, 1834 to 1943, or under section twenty-nine of the Finance Act, 1932, or under the enactments relating to the pensions of the Royal Irish Constabulary, this Act shall not extend to Northern Ireland. 22 & 23 Geo. 5. c. 25.

SCHEDULES.**FIRST SCHEDULE.**

Sections 1, 3, 4
and 5.

PENSIONS WHICH MAY BE INCREASED UNDER THIS ACT.**PART I.**

1. A pension payable under the Superannuation Acts, 1834 to 1943.
2. A pension payable under the Elementary School Teachers (Superannuation) Acts, 1898 to 1912.
3. A pension payable under the Teachers (Superannuation) Acts, 1918 to 1939, not being a pension payable under paragraph (b) of subsection (3) of section fourteen of the Teachers (Superannuation) Act, 1925.
4. A pension payable under the enactments relating to the pensions of the Royal Irish Constabulary.
5. A pension payable under section twenty-nine of the Finance Act, 1932.

15 & 16 Geo. 5.
c. 59.

22 & 23 Geo. 5.
c. 25.

PART II.

1. A pension payable by any local authority solely in respect of local government service.

6 & 7 Geo. 5.
c. 12.
1 Edw. 8 &
Geo. 6. c. 68.
2 & 3 Geo. 6.
c. 94.
2 & 3 Geo. 6.
c. 18.

For the purposes of this paragraph, the expression "local government service" means service under any local authority, any service which, by virtue of section two or section three of the Local Government (Emergency Provisions) Act, 1916, or by virtue of subsection (3) of section twelve of the Local Government Superannuation Act, 1937, or by virtue of the Local Government Staffs (War Service) Act, 1939, is, for superannuation purposes, treated as service under a local authority, and any service which, by virtue of subsection (1) of section one of the Local Government Superannuation Act, 1939, is to be treated as service for the purposes of the Local Government Superannuation Act, 1937; and the said expression includes any such service as aforesaid notwithstanding that the local authority concerned have ceased to exist.

11 & 12 Geo. 5.
c. 31.

15 & 16 Geo. 5.
c. 47.

2. A pension payable by any police authority, as defined by the Third Schedule to the Police Pensions Act, 1921, in the exercise of their functions as such an authority.

3. A pension payable by any local authority in respect of service as a professional fireman as defined by the Fire Brigade Pensions Act, 1925, or in respect of any service which, by or under any enactment, is treated as approved service in a fire brigade.

4. Any such pension as is specified in paragraph (b) of subsection (1) of section eight of this Act, being a pension payable by a local authority.

SECOND SCHEDULE.

Sections 1 and 3.

AUTHORISED INCREASES OF CERTAIN PENSIONS.

1. In this Schedule the expression "authorised increase" means an increase of a pension authorised by the provisions of section one of this Act and the expression "service pension" means a pension granted, under any Order in Council, Royal Warrant, order of His Majesty, or regulations of the Air Council, in respect of service in His Majesty's naval, military or air forces, whether that service has been rendered by the pensioner or by any other person.

2. Where the pensioner is married or has at least one dependant, then, subject to the provisions of this Schedule :—

- (a) if the pension does not exceed one hundred pounds a year, the authorised increase shall be thirty per cent. of the amount of the pension :
- (b) if the pension exceeds one hundred pounds a year but does not exceed two hundred pounds a year, the authorised increase shall be twenty-five per cent. of the amount of the pension : and
- (c) if the pension exceeds two hundred pounds a year, the authorised increase shall be twenty per cent. of the amount of the pension.

3. Where the pensioner is unmarried and has no dependants then, subject to the provisions of this Schedule :—

- (a) if the pension does not exceed seventy-five pounds a year, the authorised increase shall be thirty per cent. of the amount of the pension :
- (b) if the pension exceeds seventy-five pounds a year but does not exceed one hundred and fifty pounds a year, the authorised increase shall be twenty-five per cent. of the amount of the pension : and
- (c) if the pension exceeds one hundred and fifty pounds a year, the authorised increase shall be twenty per cent. of the amount of the pension.

4. The authorised increase of a pension shall not exceed the amount which is necessary to increase the income of the pensioner :—

- (a) if he is married, or has at least one dependant, to three hundred pounds a year : and
- (b) in any other case, to two hundred and twenty-five pounds a year.

5. Where a person is in receipt of more than one pension specified in the First Schedule to this Act, the provisions of the last foregoing paragraph shall not have effect with respect to those pensions, but the

2ND SCH.
—cont.

authorised increases thereof shall not in the aggregate exceed the amount specified in that paragraph; and any amount by which the authorised increases of the pensions are reduced by reason of the provisions of this paragraph shall be apportioned between the pensions in the proportions which they bear to one another.

6. Where a person is in receipt of any pension specified in the First Schedule to this Act, and the husband or wife of that person is also in receipt of any pension so specified, the provisions of the last two foregoing paragraphs shall not have effect with respect to those pensions, but the authorised increases thereof shall not in the aggregate exceed the amount specified in paragraph 4 of this Schedule; and any amount by which the authorised increases of the pensions are reduced by reason of the provisions of this paragraph shall be apportioned between the pensions in the proportions which they bear to one another.

7. For the purpose of determining the percentage by reference to which the authorised increase of a pension specified in the First Schedule to this Act is to be calculated, there shall be aggregated with that pension :—

- (a) where the pensioner is in receipt of any other pension so specified, that other pension : and
- (b) where the pensioner is in receipt of a service pension, that service pension.

8. A service pension shall be disregarded for the purposes of the last foregoing paragraph if :—

- (a) the pension has been granted solely on account of death or disablement which is attributable to service in His Majesty's naval, military or air forces : or
- (b) the pension has been granted partly on account of death or disablement which is attributable to such service, and no specific part of the pension is referable to the death or disablement :

and where any service pension has been granted partly on account of death or disablement which is attributable to service in His Majesty's naval, military or air forces and a specific part of the pension is referable to the death or disablement, the pension shall, for the purposes of the last foregoing paragraph, be deemed to be reduced by the amount of that part.

For the purpose of this paragraph, the death or disablement of any person shall be treated as attributable to service in His Majesty's naval, military or air forces, if it is wholly or partly due to any wound, injury or disease which has been caused or aggravated by such service.

9. Where a woman is in receipt of a pension specified in the First Schedule to this Act which is payable in respect of the service of her deceased husband, and any person under the age of sixteen years who is dependent upon her is also in receipt of a pension so specified which is payable in respect of those services, then, without

prejudice to the provisions of paragraph 7 of this Schedule, each of the pensions shall, for the purpose of determining the percentage by reference to which the authorised increase thereof is to be calculated, be deemed to be of an amount equal to the aggregate amount of both the pensions.

10. Where under the provisions of any enactment or other instrument for the time being in force a pension is not payable to the pensioner, but is payable to some other person, the pensioner shall, for the purposes of this Schedule, be deemed to be in receipt thereof.

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